Parliamentary laws to specific cases, without examining their constitutionality, legality or reasonableness.

4. Fundamental Rights

The authority of the Parliament is also restricted by the incorporation of a code of justiciable fundamental rights under Part III of the Constitution. Article 13 prohibits the State from making a law that either takes away totally or abrogates in part a fundamental right. Hence, a Parliamentary law that contravenes the fundamental rights shall be void. In Britain, on the other hand, there is no codification of justiciable fundamental rights in the Constitution. The British Parliament has also not made any law that lays down the fundamental rights of the citizens. However, it does not mean that the British citizens do not have rights. Though there is no charter guaranteeing rights, there is maximum liberty in Britain due to the existence of the Rule of Law.

Therefore, even though the nomenclature and organisational pattern of our Parliament is similar to that of the British Parliament, there is a substantial difference between the two. The Indian Parliament is not a sovereign body in the sense in which the British Parliament is a sovereign body. Unlike the British Parliament, the authority and jurisdiction of the Indian Parliament are defined, limited and restrained.

In this regard, the Indian Parliament is similar to the American Legislature (known as Congress). In USA also, the sovereignty of Congress is legally restricted by the written character of the Constitution, the federal system of government, the system of judicial review and the Bill of Rights.

Table 23.5 Allocation of Seats in Parliament for States and Union Territories and seats reserved for SCs and STs in the Lok Sabha

Sl. No.	States/UTs	No. of Seats in Rajya Sabha	No. of Seats in Lok Sabha	Reserved for the Scheduled Castes	Reserved for the Scheduled Tribes
	I. States				
1.	Andhra Pradesh	11	25	4	1
2.	Arunachal Pradesh	1	2	—	—
3.	Assam	7	14	1	2
4.	Bihar	16	40	6	—
5.	Chhattisgarh	5	11	1	4
6.	Goa	1	2	—	—